

ExpectedEstate

POD TOD TRANSFER

NAVIGATION

Dashboard

Settlement Path

SETTLEMENT

Asset Ledger

Liabilities

Accounting

Final Distribution

Official Forms

RECORDS

Discovery Assistant

Document Vault

Settlement Trail

Follow-Ups

SUPPORT

Help Center

Settings

SYSTEM

Profile

Admin Console

pth13-smallestate
pth13-smallestate@test.com

Sign Out

Settlement Roadmap

YOUR COMPLETE 6-PHASE GUIDE

0

Immediate Actions
Secure & Notify
Week 1-2

Court Filing
Petition & Letters
Week 3-8

Asset Discovery
Inventory & Appraisal
Month 2-4

Creditor Claims
Notice & Payment
Month 4-8

Asset Liquidation
Transfer & Sell
Month 6-12

Final Distribution
Close Estate
Month 12-18

Immediate Actions
Secure & Notify • Week 1-2

Court Filing
Petition & Letters • Week 3-8

Asset Discovery
Inventory & Appraisal • Month 2-4

Creditor Claims
Notice & Payment • Month 4-8

Asset Liquidation
Transfer & Sell • Month 6-12

Final Distribution
Close Estate • Month 12-18

Preliminary Assessment

Current

0/6

☐ Check Small Estate Eligibility

NEXT STEP

Determine if total assets are under the state's small estate threshold. You may be able to avoid probate entirely using a simplified Affidavit

Start Fast-Track

☐ Confirm Executor/Trustee Role

Review the Will or Trust to confirm your appointment and willingness to serve.

Profile Settings

☐ Secure the Property

Change locks, forward mail, and ensure the home is protected from theft or damage.

Upload Photos

☐ Identify Minor Beneficiaries

OPTIONAL

Review all heirs and identify any beneficiaries under age 18. Minors require special court protection through a guardian ad litem.

Protect Minors

☐ Check Primary Residence Succession Eligibility

OPTIONAL

If the estate consists primarily of a primary residence valued under \$100,000, you may qualify for simplified succession process (DE-31C)

Check Eligibility

UPLOAD MISCELLANEOUS

POD TOD TRANSFER

NAVIGATION

SETTLEMENT

RECORDS

SUPPORT

SYSTEM



pth13-smallestestate
pth13-smallestestate@test.com

Immediate Actions Current
0/6

☐ Secure the Property NEXT STEP

Change locks, forward mail, and ensure the home is protected from theft or damage.

☐ Notify Social Security Administration

Report the death to stop benefit payments and prevent overpayment recovery.

 Death Certificate Obtained



Upload Death Certificate

☐ Cancel Credit Cards & Subscriptions

Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts

☐ Conduct Genealogical Search OPTIONAL

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribu

☐ Locate Will and Important Documents

Find the original Will, trust documents, insurance policies, and account statements.

Upload Will

☐ Open Estate Bank Account

Create a separate checking account for estate income and expenses.

 Death Certificate Obtained



UPLOAD EXECUTOR ID

Upload Proof

☐ Pay Immediate Bills

Keep utilities, mortgage, and insurance current to protect estate assets.

Track Bills

☐ Confirm U.S. Legal Representative

Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.

☐ Check Apostille Requirements

Determine if your country is part of the Hague Apostille Convention for notarizing documents.



UPLOAD MISCELLANEOUS

Court Filing

0/5 1 asset

☐ File Petition for Probate (DE-111)

Submit the probate petition to the Superior Court to open the estate case.

 UPLOAD ORIGINAL WILL

 Death Certificate Obtained



UPLOAD DE-111



UPLOAD DE-121

Start Petition

☐ Publish Creditor Notice Check Deadline LOCKED

Publish notice in a local newspaper for 3 consecutive weeks to notify creditors.

 UPLOAD COURT CASE NUMBER

 UPLOAD DE-130



Upload Notice

☐ Mail Notice to Known Creditors LOCKED

Send formal notice to all known creditors (banks, credit cards, medical providers).

 [UPLOAD DE-157](#)

Notify Creditors

☐ Attend Probate Hearing LOCKED

Appear in court for the probate hearing (usually 60-90 days after filing).

 [UPLOAD VALID ID](#)

 [UPLOAD DE-130](#)

View Roadmap

☐ Receive Letters Testamentary (DE-150) LOCKED

Obtain certified copies of your Letters - this is your legal authority to act.

 [UPLOAD DE-150](#)

☐ File Small Estate Affidavit OPTIONAL

For estates under threshold, use this shortcut to bypass court probate.

 [UPLOAD DE-310](#)

 [Death Certificate Obtained](#)



☐ File Spousal Property Petition (DE-221) OPTIONAL

Request court order to transfer property to surviving spouse without full probate.

 [UPLOAD DE-221](#)

 [Death Certificate Obtained](#)



Start Spousal Path

☐ Give Notice of Hearing (DE-120) OPTIONAL LOCKED

Notify all interested parties about the court hearing date for the Spousal Property Petition.

 [UPLOAD DE-120](#)

☐ Obtain Spousal Property Order (DE-226) OPTIONAL LOCKED

Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.

 [UPLOAD DE-226](#)

☐ Issue Certificate of Trust OPTIONAL

Formalize successor trustee authority for trust-held assets.

 [UPLOAD TRUST AGREEMENT](#)

☐ Obtain Business Operating Authority OPTIONAL

If the decedent owned a business, you may need a court order to continue operations and pay employees.

☐ File Petition for Guardian Ad Litem (DE-350) OPTIONAL LOCKED

Request court appointment of a guardian ad litem to represent minor beneficiaries' interests throughout probate.

 [UPLOAD DE-350](#)

 [Death Certificate Obtained](#)



Set Up Guardian

☐ Obtain Guardian Ad Litem Order (DE-351) OPTIONAL LOCKED

Receive court order appointing guardian ad litem. Provide guardian with all estate information.

 [UPLOAD DE-351](#)

Get Final Order

☐ File Petition to Determine Succession (DE-310) OPTIONAL

File petition with court to determine who inherits the primary residence without full probate.



 **UPLOAD DE-310**

 **Death Certificate Obtained**



 **UPLOAD PROPERTY DEED**

Start Succession

☐ **Give Notice of Hearing (DE-120)** **OPTIONAL** **LOCKED**

Notify all interested parties of the hearing date for the succession petition.

 **UPLOAD DE-120**

☐ **Obtain Order Determining Succession (DE-315)** **OPTIONAL** **LOCKED**

Receive court order determining property succession. Record order with county recorder.

 **UPLOAD DE-315**

☐ **Track Special Notice Requests (DE-154)** **OPTIONAL** **LOCKED**

Maintain list of all parties who have requested special notice. You must serve them copies of ALL court filings.

 **UPLOAD DE-154**

 **UPLOAD DE-130**

Open Registry

☐ **Serve All Special Notice Recipients** **OPTIONAL** **LOCKED**

Each time you file a document with the court, serve copies by mail on all parties who requested special notice.

Service Tracker

☐ **Request Bond Waiver from Heirs (DE-142)** **OPTIONAL** **LOCKED**

Ask all heirs to sign waivers of bond requirement. Bond costs 0.5-1% of estate value annually.

 **UPLOAD DE-142**

Avoid Bond Cost

☐ **File Waiver of Bond (DE-142)** **OPTIONAL** **LOCKED**

Submit signed waivers to court and request order waiving bond requirement.

 **UPLOAD DE-142**

Open Workbook

☐ **Obtain Order Waiving Bond (DE-143)** **OPTIONAL** **LOCKED**

Verify that the court has officially waived the bond requirement, typically reflected in a separate Order (DE-143) or the Order for Probate

 **UPLOAD DE-143**

 **UPLOAD DE-140**

Open Workbook

☐ **Respond to Objections (DE-115/116)** **OPTIONAL** **LOCKED**

If someone files an objection to the petition or will, you must respond formally and prepare for contest hearing.

 **UPLOAD DE-115**

 **UPLOAD DE-116**

View Litigation

☐ **Attend Will Contest Hearing** **OPTIONAL** **LOCKED**

Appear in court for hearing on objection. Be prepared to present evidence supporting will validity.

Hearing Plan

☐ **Resolve Will Contest** **OPTIONAL** **LOCKED**

Obtain court ruling on objection. If will is upheld, proceed with probate. If invalidated, estate becomes intestate. Contested probate can extend timeline by 6-24 months.

View Outcome

 **UPLOAD MISCELLANEOUS**

POD TOD TRANSFER

NAVIGATION

SETTLEMENT

RECORDS

SUPPORT

SYSTEM



pth13-smallestate
pth13-smallestate@test.com

Asset Discovery

0/5

☐ Search State Unclaimed Property

Check state databases for dormant accounts, uncashed checks, or forgotten insurance policies.

☐ Hire Business Valuation Expert OPTIONAL

If the estate includes an ongoing business, a professional valuation is required for tax and distribution purposes.

☐ Freeze All Financial Accounts

Contact every bank, brokerage, and insurance company to freeze accounts.

Death Certificate Obtained



UPLOAD LETTERS (DE-150)

Freeze Accounts

☐ Obtain Date-of-Death Values

Request official DOD statements from every financial institution.

UPLOAD LETTERS (DE-150)

Get DOD Values

☐ Hire Probate Referee for Real Property OPTIONAL

Court-appointed appraiser must value real estate, business interests, and collectibles.

UPLOAD COURT APPOINTMENT

Manage Assets

☐ Complete Inventory & Appraisal (DE-160) Check Deadline

List ALL assets with DOD values and attach appraisal reports.

UPLOAD ALL DOD STATEMENTS

UPLOAD APPRAISAL REPORTS

☐ File Inventory with Court LOCKED

Submit DE-160 to court and serve copies on all heirs.

☐ International Tax Withholding Review

Identify beneficiary residency and citizenship to determine if 30% withholding applies.

☐ Coordinate with Guardian Ad Litem OPTIONAL LOCKED

Keep guardian informed of all estate actions. Obtain guardian's approval before major decisions affecting minors.

Open Workbook



UPLOAD MISCELLANEOUS

Creditor Claims

0/5

☐ Evaluate Estate Solvency

Compare total assets to total liabilities and funeral/admin expenses.

☐ Wait for 4-Month Claim Period LOCKED

Creditors have 4 months from notice publication to file claims.



☐ Review Submitted Claims

Examine each creditor claim for validity, amount, and supporting documentation.

Review Claims

☐ Reject Invalid Claims OPTIONAL

File formal rejections for claims that are incorrect, unsupported, or time-barred.

 [UPLOAD DE-174 ALLOWANCE OR REJECTION](#)

☐ Pay Approved Claims LOCKED

Pay valid debts in order of priority (funeral, taxes, secured debts, then unsecured).

☐ File Proof of Notice LOCKED

Submit proof that you properly notified all creditors.

 [UPLOAD PROOF OF PUBLICATION](#)

 [UPLOAD PROOF OF MAILING](#)

 [UPLOAD MISCELLANEOUS](#)

☐ Asset Liquidation

0/5

☐ Obtain Court Approval for Minor Distributions OPTIONAL

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ Present Letters to All Institutions

Submit certified Letters (DE-150) to every bank, brokerage, and insurance company.

 [UPLOAD LETTERS \(DE-150\)](#)

 [Death Certificate Obtained](#)



☐ Transfer Financial Accounts LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

☐ Prepare Notice of Proposed Action (DE-165) OPTIONAL

If you have Independent Administration of Estates Act (IAEA) authority, you must notify heirs of your intent to sell real property.

 [UPLOAD DE-165](#)

Authorization

☐ Wait for 15-Day Objection Period OPTIONAL LOCKED

Mandatory waiting period after serving Notice of Proposed Action to allow heirs to respond or object.

Track Notice

☐ File Petition to Confirm Sale (DE-260) OPTIONAL

If you do NOT have IAEA authority, or if someone objects, you must petition the court to confirm the sale of real property.

 [UPLOAD DE-260](#)

File Petition

☐ Obtain Sale Confirmation Order (DE-265) OPTIONAL LOCKED

Receive signed court order confirming the real estate sale and allowing the close of escrow.

 [UPLOAD DE-265](#)

Obtain Order

☐ Complete Property Sale & Close Escrow OPTIONAL LOCKED

Finalize the sale of real estate, sign closing documents, and receive sale proceeds into the estate account.

POD TOD TRANSFER

NAVIGATION

SETTLEMENT

RECORDS

SUPPORT

SYSTEM

 [UPLOAD FINAL HUD-1/CLOSING STATEMENT](#)

Finalize Sale

☐ **File Form 1041 (Fiduciary Income Tax)**

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.

☐ **Issue Schedule K-1 to Beneficiaries**

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

☐ **Pay Final Taxes** 📅 Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.

 [UPLOAD ALL TAX DOCUMENTS](#)

☐ **Prepare Final Accounting** 🔒 LOCKED

Document all income, expenses, and distributions for court review.

Finalize Estate

 [UPLOAD MISCELLANEOUS](#)



Final Distribution

0/5

🕒 Complete liquidation first

View Assets →



ExpectedEstate is not a law firm. We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.



pth13-smallestate
pth13-smallestate@test.com